

COMPLAINANT'S RESPONSE TO REQUEST FOR INFORMATION Pursuant to 46 C.F.R. § 502.65(c)

Elite Logistics Corp. v. Tanera Transport LLC

FMC Docket No. 25-27

I. INTRODUCTION

Pursuant to the Order of the Honorable Administrative Law Judge Richard J. Ambrow dated January 28, 2026, finding Respondent Tanera Transport LLC ("Tanera") in default and requesting additional information under 46 C.F.R. § 502.65(c), Complainant Elite Logistics Corp. ("Elite") hereby submits this Response to establish the factual and legal basis for issuance of a Default Decision with reparations.

As demonstrated below and supported by the accompanying exhibits, Tanera—acting as an ocean transportation intermediary ("OTI")—engaged in a normal, customary, and continuous practice of non-payment for container drayage services fully performed by Elite, in violation of 46 U.S.C. § 41102(c). Tanera's conduct directly and proximately caused Elite damages totaling \$14,973.75, plus the \$387.00 FMC filing fee incurred to initiate this proceeding.

II. RESPONDENT ACTED AS AN OCEAN TRANSPORTATION INTERMEDIARY

For each shipment at issue, Tanera acted as an ocean transportation intermediary by issuing Delivery Orders, arranging inland transportation of ocean containers moving in foreign commerce, standing between the ocean carrier or cargo interest and the motor carrier, and accepting contractual responsibility for payment. Copies of Delivery Orders issued by Tanera are submitted as Exhibits C1–C6.

III. NON-PAYMENT ON A NORMAL, CUSTOMARY, AND CONTINUOUS BASIS

Between October 2024 and January 2025, Tanera failed to pay six separate invoices covering nine container movements, despite Elite's full and timely performance. The unpaid invoices total \$14,973.75 and reflect a course of dealing in which multiple charges remained outstanding simultaneously while Tanera continued to tender work.

IV. CONNECTION TO RECEIVING, HANDLING, AND DELIVERING PROPERTY

Each unpaid invoice arises directly from the receiving, handling, and delivery of ocean containers, including port pickup, inland drayage, and final delivery. Elite's performance is documented through PODs and freight bills submitted as Exhibits D1–D6.

V. UNJUST AND UNREASONABLE PRACTICE

Tanera's conduct was unjust and unreasonable because it accepted services without objection, failed to dispute invoices in good faith, continued tendering work while withholding payment, and forced Elite to seek regulatory relief.

VI. PROXIMATE CAUSE AND DAMAGES

Tanera's non-payment directly caused Elite damages totaling \$14,973.75. Elite was further required to incur the \$387.00 FMC filing fee to initiate this proceeding. Elite therefore seeks total reparations of \$15,360.75.

VII. CONCLUSION

Elite respectfully requests that the Commission issue a Default Decision awarding total reparations of \$15,360.75, together with such other and further relief as the Commission deems just and proper.

DECLARATION UNDER PENALTY OF PERJURY

I declare under penalty of perjury under the laws of the United States that the foregoing is true and correct.

Executed on January 28, 2026.

A handwritten signature in cursive script that reads "Elliot Kang". The signature is written in black ink and is positioned above a horizontal line.

Elliot Kang
Elite Logistics Corp.